

25VECV00488 25VECV00488

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25VECV00488 Hearing Date: June 26, 2026 Dept: U

DIANE TRASEY DEMMAR v. MOSS & COMPANY, INC., ET AL.

No. 25VECV00488

Motion to Be Relieved as Counsel

Counsel for Plaintiff has filed

a motion seeking to be relieved as legal counsel for Plaintiff Diane Treasey Demmar ("Plaintiff").

Counsel's application and declaration are procedurally sound and in conformity with the rules.

Counsel attests in his declaration that

he represents the individual-plaintiff, and states there is "an irretrievable breakdown in the attorney-client relationship." In addition, counsel asserts that "circumstances have arisen that make continued representation unreasonably difficult," and that "conflicts have arisen that make it impossible for Murrin Law Firm to continue representation." Sufficient grounds to terminate the attorney-client relationship have been established under Rules of Prof. Conduct, Rule 1.16 (b).

The Court sees no reason counsel should not be granted his motion to withdraw. See *Heple v. Kluge*, (1951) 104 Cal.App.2d 461, 462 (withdrawal generally permitted absent a compelling reason to continue the representation); see also *People v. Prince*, (1968) 268 Cal.App.2d 398, 406 (compelling reason to deny motion to withdraw as counsel would be prejudice to client or third parties).

Plaintiff has not filed an opposition to this motion. The trial date in this case set for September 28, 2026, and the Final Status Conference on September 18, 2026, giving Plaintiff sufficient time to obtain new counsel.

For all of these reasons, the Court hereby GRANTS the motion. Counsel is directed to give notice to all parties including Plaintiff and to file with the Court certification under penalty of perjury that said service has been accomplished.